Archived: Monday, July 27, 2026 1:21:14 PM
From: Chris at Flock Safety
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To: jbabkiewicz@townofbluffton.com
Subject: How to Answer Council & Community Questions on Sharing, Access, and Audits
Sensitivity: Normal

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Flock Safety

Chief Babkiewicz,

Across the country, many of you are getting questions from council members, city attorneys, and community stakeholders about how Flock handles federal access, data sharing, and audit logs. None of this is new policy, but we know having **simple, ready-to-share language** is often just as important as the underlying controls.

Below is a short Q&A you can share directly with your council or other oversight bodies. You can forward this email as-is, or copy/paste the section below into your own memo, packet, or slide deck.

Council Members,

We've heard questions about how our Flock system handles data sharing and audit logs. We want to share a clear, concise summary you can rely on and reuse in conversations with constituents.

Q&A: How Our Flock Sharing and Audit Logs Work

1. **Can federal agencies see our Flock data by default? (If you are in California or Virginia, due to state law, this question does not apply to your agency. All Federal sharing is disabled by default in CA and VA).**
   No. Federal agencies and other outside organizations **cannot see our data by default**. Our agency is unable to receive Sharing Requests from federal agencies **unless we choose to allow it. We control if, when, and with whom we share,** and we can turn sharing off or revoke it at any time.

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2. **Can other law enforcement agencies or organizations access our Flock cameras or data without our knowledge?**
   No. Other law enforcement agencies or organizations cannot access our Flock cameras or data without our knowledge. By default, our agency is defaulted to only be discoverable for sharing at the 50-mile and Statewide radius and no one outside our organization can see our cameras or data unless we accept a sharing request from them. This discoverability only means we can receive requests from them and then choose how to respond.

   Access is only possible if either of the following things are true:

   1. We choose to allow auto-approvals for local and state agencies for certain access.
   2. We explicitly review and approve a specific sharing request from another agency or organization.

   We decide if, when, and with whom we share. We can turn sharing off at any time or revoke sharing with any agency or organization we previously approved.

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3. **How does a new federal sharing relationship get created, and does this change existing agreements?**
   Because of the extra sensitivity around federal sharing, there are extra controls. To start any new federal sharing relationship, three things must happen:

   1. We turn on the ability for a federal agency to send us a sharing request (off by default).
   2. They request access.
   3. We approve the request.

   If we don't approve it, they don't get access. These defaults **do not change or cancel any existing federal MOUs or agreements** we have already put in place; they mainly govern **new** relationships going forward.

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4. **Does Flock work with DHS or ICE/CBP, or sell them our data?**
   No. Flock **does not contract with DHS agencies, does not sell or share data with DHS**, and has **no relationship with ICE or CBP**. More detail:

   - https://www.flocksafety.com/blog/does-flock-share-data-with-ice
   - https://www.flocksafety.com/privacy-ethics

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5. **Is there a "backdoor," or can Flock quietly change the logs?**

No. There is **no backdoor access** for any agency. Audit logs are designed to be **complete, transparent, and reviewable**. Entries are written automatically, retained for oversight, and **cannot be quietly edited or overwritten**; changes to sharing or settings appear as separate events, not hidden modifications.

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6. **What do our Flock audit logs capture, and are searches justified?**
   Our audit tools capture **who searched, when, what they searched, which agency they're from, and the associated offense type**, creating a record we can review and, if needed, share with appropriate oversight bodies. Searches are tied to a **standardized NIBRS-based offense type**, so there is a clear public-safety justification documented for every search. In **Network Audits**, certain sensitive fields from outside agencies (such as officer names, specific plates, case numbers, and some search filters) are masked for safety, while full details for our own users remain visible in our Organization Audit logs.

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7. **How is accidental or unauthorized federal access being prevented going forward?**
   Flock has implemented **stricter sharing settings, permanent logging of sharing changes, NIBRS-based justifications, and state-specific guardrails** (for example, in certain states, such as CA and VA, sharing with federal agencies is completely disabled and cannot be turned on or configured otherwise). Details:
   - https://www.flocksafety.com/blog/flock-implements-enhanced-guardrails-across-california-to-ensure-lawful-and-responsible-use-of-lprs
   - https://www.flocksafety.com/blog/does-flock-share-data-with-ice

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8. **Has Flock been "breached," and why do I keep hearing that it has?**
   No. The recent concerns agencies are hearing are **not the result of a successful hack or compromise of Flock's platform or cloud environment.** The "breach" narrative you may see in YouTube videos, blogs, or on social media usually collapses several different things together, like FOIA releases of audit logs, historical sharing/configuration issues, how Network Audits appear when exported, and policy debates about federal access, and then labels all of that as a "breach," even though it is not a successful cyberattack. In at least one widely circulated video, a camera was illegally removed from service and taken off the network before it was probed, which is very different from an attacker breaking into an active, in-service device. When issues are identified, Flock addresses them through product changes, guardrails, and direct communication with affected agencies, not because attackers gained unauthorized access to your data.

In addition, we've put together a few short videos that walk through common questions we hear from council members and community stakeholders. These can be helpful to share directly or to use as a quick reference ahead of meetings:

- **What Flock License Plate Readers Actually Do (and What They Don't)**
  A clear overview of what LPR technology captures, how it works, and the boundaries of the system.
- **Inside a Flock LPR Search: How Investigators Actually Use the Tool**
  A step-by-step look into how Flock LPR searches as conducted and how results are interpreted.
- **Who Can See Flock Data? How Sharing Controls and Audits Really Work**
  An explanation of access controls, approval workflows, and how audit logs create transparency and accountability.

Our goal is to ensure the technology we use is both effective for public safety and consistent with the expectations of our community and its elected leaders. If there are additional questions you are hearing, we're glad to address them and, where appropriate, add them to this Q&A.

Respectfully,
<Chief / Sheriff / Department Name>

Best,
Chris Colwell,
SVP, Customer Experience
Flock Safety

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